

right of entry may be refused and entry made only under the authority of a warrant. 2006, c. 17, s. 230 (6).

Not applicable to non-profit housing co-operatives

(7) This section does not authorize an inspection in respect of the rights and duties of non-profit housing co-operatives or members of non-profit housing co-operatives. 2013, c. 3, s. 52.

▼ Section Amendments with date in force (d/m/y)

Warrant

231 (1) A provincial judge or justice of the peace may at any time issue a warrant authorizing a person named in the warrant to enter and search a building, receptacle or place if the provincial judge or justice of the peace is satisfied by information on oath that there are reasonable grounds to believe that an offence has been committed under this Act and the entry and search will afford evidence relevant to the commission of the offence. 2006, c. 17, s. 231 (1).

Seizure

(2) In a warrant, the provincial judge or justice of the peace may authorize the person named in the warrant to seize anything that, based on reasonable grounds, will afford evidence relevant to the commission of the offence. 2006, c. 17, s. 231 (2).

Receipt and removal

(3) Anyone who seizes something under a warrant shall,

- (a) give a receipt for the thing seized to the person from whom it was seized; and
- (b) bring the thing seized before the provincial judge or justice of the peace issuing the warrant or another provincial judge or justice to be dealt with according to law. 2006, c. 17, s. 231 (3).

Expiry

(4) A warrant shall name the date upon which it expires, which shall be not later than 15 days after the warrant is issued. 2006, c. 17, s. 231 (4).

Time of execution

(5) A warrant shall be executed between 6 a.m. and 9 p.m. unless it provides otherwise. 2006, c. 17, s. 231 (5).

Other matters

(6) Sections 159 and 160 of the *Provincial Offences Act* apply with necessary modifications with respect to any thing seized under this section. 2006, c. 17, s. 231 (6).

Production order

231.1 (1) A provincial judge or justice of the peace may at any time issue a production order in the prescribed form to a person, other than a person under investigation for an offence, requiring the person to,

- (a) produce documents or copies of documents, certified by affidavit to be true copies, or produce data; or
- (b) prepare a document based on documents or data already in existence and produce it. 2020, c. 16, Sched. 4, s. 32.

Contents of order

(2) A production order shall stipulate when, where and how the documents or data are to be produced and to whom they are to be produced. 2020, c. 16, Sched. 4, s. 32.

Grounds

(3) A provincial judge or justice of the peace may make a production order if the provincial judge or justice is satisfied by information given under oath or affirmation that there are reasonable grounds to believe that,

- (a) an offence under this Act has been or is being committed;
- (b) the document or data will provide evidence respecting the offence or suspected offence; and
- (c) the person who is subject to the order has possession or control of the document or data. 2020, c. 16, Sched. 4, s. 32.

Conditions

(4) A production order may contain such conditions as the provincial judge or justice of the peace considers advisable. 2020, c. 16, Sched. 4, s. 32.

Evidence

(5) A copy of a document produced under this section, on proof by affidavit that it is a true copy, is admissible in evidence in any prosecution of a person for an offence under this Act and has the same probative force as the original document would have if it had been proved in the ordinary way. 2020, c. 16, Sched. 4, s. 32.

No return of copies

(6) Copies of documents produced under this section are not required to be returned to the person who provided them. 2020, c. 16, Sched. 4, s. 32.

Compliance required

(7) A person to whom a production order is directed shall comply with the order according to its terms. 2020, c. 16, Sched. 4, s. 32.

▼ Section Amendments with date in force (d/m/y)

Protection from personal liability

232 (1) No proceeding for damages shall be commenced against an investigator or inspector appointed by the Minister, against a member of the Board or against a public servant employed under Part III of the *Public Service of Ontario Act, 2006* for any act done in good faith in the performance or intended performance of any duty or in the exercise or intended exercise of any power under this Act or for any neglect or default in the performance or exercise in good faith of such a duty or power. 2013, c. 3, s. 53; 2016, c. 25, Sched. 5, s. 10.

Crown liability

(2) Despite subsection 8 (3) of the *Crown Liability and Proceedings Act, 2019*, subsection (1) does not relieve the Crown of any liability to which it would otherwise be subject. 2006, c. 17, s. 232 (2); 2019, c. 7, Sched. 17, s. 153.

▼ Section Amendments with date in force (d/m/y)

PART XVI

OFFENCES

Offences requiring knowledge

233 A person is guilty of an offence if the person knowingly,

- (a) withholds the reasonable supply of a vital service, care service or food or interferes with the supply in contravention of section 21;
- (b) alters or causes to be altered the locking system on any door giving entry to a rental unit or the residential complex in a manner that contravenes section 24 or 35;
- (c) restricts reasonable access to the residential complex by political candidates or their authorized representatives in contravention of section 28;
- (d) seizes any property of the tenant in contravention of section 40;
- (d.1) provides false or misleading information in connection with the giving of a notice under subsection 47.1 (1) or 47.2 (1);
- (e) fails to afford a tenant a right of first refusal in contravention of section 51 or 53;
- (f) recovers possession of a rental unit without complying with the requirements of section 48.1, 49.1, 52, 54 or 55;
- (g) coerces a tenant to sign an agreement referred to in section 121;
- (h) harasses, hinders, obstructs or interferes with a tenant in the exercise of,
 - (i) securing a right or seeking relief under this Act or in a court,
 - (ii) participating in a proceeding under this Act, or
 - (iii) participating in a tenants' association or attempting to organize a tenants' association;
- (i) harasses, coerces, threatens or interferes with a tenant in such a manner that the tenant is induced to vacate the rental unit;
- (j) harasses, hinders, obstructs or interferes with a landlord in the exercise of,
 - (i) securing a right or seeking relief under this Act or in a court, or

- (ii) participating in a proceeding under this Act;
- (k) obtains possession of a rental unit improperly by giving a notice to terminate in bad faith; or
- (l) coerces a tenant of a mobile home park or land lease community to enter into an agency agreement for the sale or lease of their mobile home or land lease home or requires an agency agreement as a condition of entering into a tenancy agreement. 2006, c. 17, s. 233; 2016, c. 2, Sched. 6, s. 2; 2017, c. 13, s. 28; 2020, c. 16, Sched. 4, s. 33.

▼ Section Amendments with date in force (d/m/y)

Other offences

234 A person is guilty of an offence if the person,

- (a) enters a rental unit where such entry is not permitted by section 26, 27 or 142 or enters without first complying with the requirements of section 26, 27 or 142;
- (b) fails to make an evicted tenant's property available for retrieval in accordance with subsection 41 (3);
- (b.1) contravenes subsection 47.4 (1);
- (c) gives a notice to terminate a tenancy under section 48 or 49 in contravention of section 51;
- (d) requires or receives a security deposit from a tenant contrary to section 105;
- (e) fails to pay to the tenant annually interest on the rent deposit held in respect of their tenancy in accordance with section 106;
- (f) fails to apply the rent deposit held in respect of a tenancy to the rent for the last month of the tenancy in contravention of subsection 106 (10);
- (g) fails to repay an amount received as a rent deposit as required by subsection 107 (1) or (2);
- (h) fails to provide a tenant or former tenant with a receipt in accordance with section 109;
- (i) fails to provide the notice in the form required under section 114 or gives false

information in the notice;

(j) requires a tenant to pay rent proposed in an application in contravention of subsection 126 (5);

(k) fails to provide information on the total cost of utilities in accordance with subsection 128 (2);

(l) charges or collects amounts from a tenant, a prospective tenant, a former tenant, a subtenant, a potential subtenant, an assignee or a potential assignee in contravention of section 134;

(l.1) terminates the obligation to supply electricity without the tenant's consent in contravention of subsection 137 (3);

(l.2) charges a tenant a portion of the cost of the utility without the consent of the tenant in contravention of subsection 138 (1);

(m) gives a notice of rent increase or a notice of increase of a charge in a care home without first giving an information package contrary to section 140;

(n) does anything to prevent a tenant of a care home from obtaining care services from a person of the tenant's choice contrary to clause 147 (a);

(o) interferes with the provision of care services to a tenant of a care home contrary to clause 147 (b);

(p) increases a charge for providing a care service or meals to a tenant in a care home in contravention of section 150;

(q) interferes with a tenant's right under section 156 to sell or lease his or her mobile home;

(r) restricts the right of a tenant of a mobile home park or land lease community to purchase goods or services from the person of his or her choice in contravention of section 160;

(s) charges an illegal contingency fee in contravention of subsection 214 (1);

(t) fails to comply with any or all of the items contained in a work order issued under section 225;

(t.1) fails to comply with a production order issued under section 231.1;

(u) obstructs or interferes with an inspector exercising a power of entry under

section 230 or 231 or with an investigator exercising a power of entry under section 231;

(v) furnishes false or misleading information in any material filed in any proceeding under this Act or provided to the Board, an employee in the Board, an official of the Board, an inspector, an investigator, the Minister or a designate of the Minister;

(w) unlawfully recovers possession of a rental unit;

(x) charges rent in an amount greater than permitted under this Act; or

(y) contravenes an order of the Board that,

(i) orders a landlord to do specified repairs or replacements or other work within a specified time,

(ii) orders that a landlord, a superintendent or an agent of a landlord may not engage in any further activities listed in paragraphs 2 to 6 of subsection 29 (1) against any of the tenants in a residential complex, or

(iii) orders a landlord not to breach an obligation under subsection 41 (2) or (3) again. 2006, c. 17, s. 234; 2009, c. 33, Sched. 21, s. 11 (9); 2010, c. 8, s. 39 (2); 2013, c. 3, s. 54; 2016, c. 2, Sched. 6, s. 3; 2017, c. 13, s. 29; 2020, c. 16, Sched. 4, s. 34.

▼ Section Amendments with date in force (d/m/y)

Harassment, interference with reasonable enjoyment

235 (1) Any landlord or superintendent, agent or employee of the landlord who knowingly harasses a tenant or interferes with a tenant's reasonable enjoyment of a rental unit or the residential complex in which it is located is guilty of an offence. 2006, c. 17, s. 235 (1).

Exception

(2) For the purposes of subsection (1), the carrying out of repairs, maintenance and capital improvements does not constitute harassment or interference with a tenant's reasonable enjoyment of a rental unit or the residential complex in which it is located unless it is reasonable to believe,

(a) that the date or time when the work is done or the manner in which it is carried out is intended to harass the tenant or interfere with the tenant's reasonable enjoyment; or

(b) that the repairs, maintenance or capital improvements were carried out without reasonable regard for the tenant's right to reasonable enjoyment. 2006, c. 17, s. 235 (2).

Attempts

236 Any person who knowingly attempts to commit any offence referred to in section 233, 234 or 235 is guilty of an offence. 2006, c. 17, s. 236.

Directors and officers

237 Every director or officer of a corporation who knowingly concurs in an offence under this Act is guilty of an offence. 2006, c. 17, s. 237.

Penalties

238 (1) A person, other than a corporation, who is guilty of an offence under this Act is liable on conviction to a fine of not more than \$50,000. 2006, c. 17, s. 238 (1); 2020, c. 16, Sched. 4, s. 35 (1).

Note: On a day to be named by proclamation of the Lieutenant Governor, subsection 238 (1) of the Act is amended by striking out "\$50,000" and substituting "\$100,000". (See: 2023, c. 10, Sched. 7, s. 9 (1))

Same

(2) A corporation that is guilty of an offence under this Act is liable on conviction to a fine of not more than \$250,000. 2006, c. 17, s. 238 (2); 2020, c. 16, Sched. 4, s. 35 (2).

Note: On a day to be named by proclamation of the Lieutenant Governor, subsection 238 (2) of the Act is amended by striking out "\$250,000" and substituting "\$500,000". (See: 2023, c. 10, Sched. 7, s. 9 (2))

▼ Section Amendments with date in force (d/m/y)

Limitation

239 (1) No proceeding shall be commenced respecting an offence under clause 234 (v) other than an offence described in subsection (1.1) more than two years after the date on which the facts giving rise to the offence came to the attention of the Minister. 2006, c. 17, s. 239 (1); 2016, c. 25, Sched. 5, s. 11 (1).

Same

(1.1) No proceeding shall be commenced respecting an offence under clause 234 (v) that is the furnishing of false or misleading information in any material provided to an inspector appointed by a local municipality under section 226.1, more than two years after the date on which the facts giving rise to the offence came to the attention of the local municipality. 2016, c. 25, Sched. 5, s. 11 (2).

Same

(1.2) No proceeding shall be commenced respecting an offence under clause 234 (l) more than two years after the date on which the facts giving rise to the offence came to the attention of the Minister. 2020, c. 16, Sched. 4, s. 36.

Same

(2) No proceeding shall be commenced respecting any other offence under this Act more than two years after the date on which the offence was, or is alleged to have been, committed. 2006, c. 17, s. 239 (2).

▼ Section Amendments with date in force (d/m/y)

Evidence

Proof of filed documents

240 (1) The production by a person prosecuting a person for an offence under this Act of a certificate, statement or document that appears to have been filed with or delivered to the Board by or on behalf of the person charged with the offence shall be received as evidence that the certificate, statement or document was so filed or delivered. 2006, c. 17, s. 240 (1).

Proof of making

(2) The production by a person prosecuting a person for an offence under this Act of a certificate, statement or document that appears to have been made or signed by the person charged with the offence or on the person's behalf shall be received as evidence that the certificate, statement or document was so made or signed. 2006, c. 17, s. 240 (2).

Proof of making, Board or Minister

(3) The production by a person prosecuting a person for an offence under this Act of any order, certificate, statement or document, or of any record within the meaning of section 20 of the *Statutory Powers Procedure Act*, that appears to have been made, signed or issued by the Board, the Minister, an employee in the Board, an employee in the Ministry or an inspector appointed under section 226.1, shall be received as evidence that the order, certificate, statement, document or record was so made, signed or issued. 2006, c. 17, s. 240 (3); 2013, c. 3, s. 55; 2016, c. 25, Sched. 5, s. 12.

True copies

(4) Subsections (1) to (3) apply, with necessary modifications, to any extract or copy of a certificate, statement, document, order or record referred to in those subsections, if the extract or copy is certified as a true extract or copy by the person who made the extract or copy. 2006, c. 17, s. 240 (4).

Printout of electronic version

(5) Subsections (1) to (3) apply, with necessary modifications, to any printout of the electronic version of a certificate, statement, document, order or record referred to in those subsections that is stored or maintained by the Board in an electronic format, if the printout is certified as a true copy of the electronic version by the person who made the printout. 2020, c. 16, Sched. 4, s. 37.

▼ Section Amendments with date in force (d/m/y)

PART XVII REGULATIONS

Regulations